

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CLCL049530: WELLS FARGO BANK, N.A. vs SOLIMAN A SOLIMAN, AN
INDIVIDUAL**

08/06/2026 in Department 43

Motion for Summary Judgment Pursuant to CCP 437C

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: ☐ Plaintiff's Motion for Summary Judgment/Adjudication

Tentative Ruling: Plaintiff Wells Fargo Bank's Motion for Summary Adjudication is GRANTED as to the Second Cause of Action for Breach of Implied in Fact Contract.

Defendant's request for continuance of the hearing to allow for discovery DENIED.

Undisputed Material Facts (UMFs)

Plaintiff's UMFs 1-15, 17 – 28 are established.
Plaintiff's UMF 16 is not established.

Defendant's Evidentiary Objections

Objections 1-5 and 7-18 are overruled. Objection 6 is sustained.

DISCUSSION

An implied-in-fact contract is based on the conduct of the parties. (Civ. Code, § 1621.) Like an express contract, an implied-in-fact contract requires an ascertained agreement of the parties. (*Unilab Corp. v. Angeles-IPA* (2016) 244 Cal.App.4th 622, 636, citing *Silva v. Providence Hospital of Oakland* (1939) 14 Cal.2d 762, 773.) Whether an implied contract exists “ ‘is usually a question of fact for the trial court. (*Unilab* at 636.) For summary judgment purposes, the question is whether a triable issue of material fact exists. (*Unilab* at 636 citing *Kaplan v. Coldwell Banker Residential Affiliates, Inc.* (1997) 59 Cal.App.4th 741, 748.)

There is no triable issue of fact raised to dispute that Defendant was issued and used the Wells Fargo credit card in question; charged goods and services to that card; stopped making payments on the card up through February 26, 2024; and owes a balance on the card. (UMF 15, 17-28). In his declaration, Defendant only denies having received a credit card agreement. Defendant does not deny in the declaration (or in any other evidence) any of the other material facts presented in the motion, including that the credit card statements attached as Exhibit 2 to the Haas Declaration reflect the use of the card by Defendant and an outstanding balance (i.e., the course of conduct between the two parties.) Defendant’s additional material facts - denying receipt of the customer agreement, challenging which customer agreement is at issue, acknowledging that Plaintiff has payment and balance history information - do not create a triable issue of fact that Defendant breached an implied-in-fact contract.

Defendant has not established good cause for a continuance. The fact that he is a self-represented litigant does not excuse his failure to pursue discovery. His answer was filed on September 23, 2025 and the motion was filed on April 17, 2026. Defendant has shown no diligence in seeking discovery, which apparently still has not been served. A continuance may only be granted on a showing that “facts essential to justify opposition ... cannot, for reasons stated, then be presented. “There must be a justifiable reason why the essential facts cannot be presented. An inappropriate delay in seeking to obtain the facts may not be a valid reason why the facts cannot then be presented. The statute itself authorizes the imposition of sanctions for declarations presented in bad faith or solely for purposes of delay. (§ 437c, subd. (j).) A good faith showing that further discovery is needed to oppose summary judgment requires some justification for why such discovery could not have been completed sooner.” (*Cooksey v. Alexakis* (2004) 123 Cal. App. 4th 246, 257.) The request for a continuance is denied.

Plaintiff is entitled to Summary Adjudication as to the Second Cause of Action for Breach of Implied in Fact Contract.

Moving party is ordered to serve notice of the Court’s ruling.